

GUARANTY

This Guaranty (“**Guaranty**”) is entered into as of the _____ day of _____ 2022, by the undersigned (the “**Guarantor**” whether one or more), for the benefit of **BELLE REALTY OF LAFAYETTE, L.L.C.**, a Louisiana limited liability company (the “**Lessor**”).

R E C I T A L S

A. **LAFAYETTE COOKIES AND CREAM, LLC**, a Louisiana limited liability company domiciled in Lafayette Parish, Louisiana whose current mailing address is 2140 11TH AVE. SOUTH, SUITE 305, BIRMINGHAM, AL 35205, (the “**Lessee**”), has entered into a certain Lease Agreement of even date herewith (“**Lease**”) by and between Lessor and Lessee, a copy of which is attached hereto as Exhibit A.

B. Guarantor has an economic interest in Lessee or will otherwise obtain a material financial benefit from the Lease.

C. As a condition to entering into the Lease with Lessee, Lessor requires that the Guarantor execute this Guaranty.

NOW, THEREFORE, in order to induce Lessor to enter into the Lease with the Lessee, and in consideration thereof, Guarantor agrees as follows:

1. Capitalized terms used but not defined in this Guaranty shall have the meanings assigned to them in the Lease.
2. Guarantor hereby absolutely, unconditionally and irrevocably guarantees to Lessor the full and prompt payment when due, whether at maturity or earlier, and at all times until this Guaranty is terminated or released under the terms hereof, and the full and prompt performance when due, of all of the following:
 - (a) The payment, by the Lessee, when due, of all amounts due under the Lease.
 - (b) The prompt performance of or compliance with any covenant or agreement contained in the Lease by the Lessee and the prompt performance by the Lessee of all of its obligations pursuant to the terms and conditions of the Lease.
 - (c) All costs and expenses, including reasonable fees and out of pocket expenses of attorneys and expert witnesses, incurred by Lessor in enforcing its rights under this Guaranty.
3. Guarantor’s obligations under this Guaranty constitute an unconditional guaranty of payment and performance and not merely a guaranty of collection.

4. The obligations of Guarantor under this Guaranty shall be performed without demand by Lessor and shall be unconditional and without regard to any other circumstance which might otherwise constitute a legal or equitable discharge of a surety or a guarantor. Guarantor hereby waives the benefit of all principles or provisions of law, statutory or otherwise, which are or might be in conflict with the terms of this Guaranty and agrees that Guarantor's obligations shall not be affected by any circumstances, whether or not referred to in this Guaranty, which might otherwise constitute a legal or equitable discharge of a surety or a guarantor. Guarantor hereby waives the benefits of any right of discharge under any and all statutes or other laws relating to guarantors or sureties and any other rights of sureties and guarantors thereunder. Without limiting the generality of the foregoing, Guarantor hereby waives, to the fullest extent permitted by law, diligence in collecting by the Lessor, presentment, demand for payment, protest, all notices with respect to the Lease and this Guaranty which may be required by statute, rule of law or otherwise to preserve Lessor's rights against Guarantor under this Guaranty, including notice of acceptance, notice of any amendment of the Lease, notice of the occurrence of any default under the Lease, notice of dishonor and notice of protest. Guarantor also waives, to the fullest extent permitted by law, all rights to require Lessor to (a) proceed against Lessee (b) proceed against or exhaust any collateral held by Lessor to secure the performance of Lessee under the Lease, or (c) pursue any other remedy it may now or hereafter have against Lessee. In addition, Guarantor waives the benefit of any right of discharge under Louisiana law and all other rights of sureties and guarantors thereunder.

5. At any time or from time to time and any number of times, without notice to Guarantor and without affecting the liability of Guarantor, (a) the time for payment of the amounts due under the Lease may be extended or the Lease may be renewed in whole or in part; or (b) the time for Lessee's performance of or compliance with any covenant or agreement contained in the Lease, whether presently existing or hereinafter entered into, may be extended or such performance or compliance may be waived.

6. Guarantor shall have no right of, and hereby waives any claim for, subrogation or reimbursement against Lessee by reason of any payment by Guarantor under this Guaranty, whether such right or claim arises at law or in equity or under any contract or statute, until all amounts due under the Lease have been paid in full and there has expired the maximum possible period thereafter during which any payment made by Lessee to Lessor with respect to the Lease could be deemed a preference under the United States Bankruptcy Code.

7. If any payment by Lessee is held to constitute a preference under any applicable bankruptcy, insolvency, or similar laws, or if for any other reason Lessor is required to refund any sums to Lessee, such refund shall not constitute a release of any liability of Guarantor under this Guaranty. It is the intention of Lessor and Guarantor that Guarantor's obligations under this Guaranty shall not be discharged except by Guarantor's performance of such obligations and then only to the extent of such performance.

8. Guarantor shall from time to time, upon request by Lessor, deliver to Lessor such financial statements as Lessor may reasonably require.

9. Lessor may assign its rights under this Guaranty in whole or in part and, upon any such assignment, all the terms and provisions of this Guaranty shall inure to the benefit of such assignee to the extent so assigned. The terms used to designate any of the parties herein shall be deemed to include the heirs, legal representatives, successors and assigns of such parties.

10. **THIS GUARANTY AND THE LEASE REPRESENT THE FINAL AGREEMENT BETWEEN THE PARTIES AND MAY NOT BE CONTRADICTED BY EVIDENCE OF PRIOR, CONTEMPORANEOUS OR SUBSEQUENT ORAL AGREEMENTS. THERE ARE NO UNWRITTEN ORAL AGREEMENTS BETWEEN**

THE PARTIES. All prior or contemporaneous agreements, understandings, representations, and statements, oral or written, are merged into this Guaranty and the Lease. Guarantor acknowledges that it has received a copy of the Lease. Neither this Guaranty nor any of its provisions may be waived, modified, amended, discharged, or terminated except by an agreement in writing signed by the party against which the enforcement of the waiver, modification, amendment, discharge, or termination is sought, and then only to the extent set forth in that agreement.

11. Guarantor agrees that any controversy arising under or in relation to this Guaranty shall be litigated exclusively in Lafayette, Lafayette Parish, Louisiana (the “**Property Jurisdiction**”). The state and federal courts and authorities with jurisdiction in the Property Jurisdiction shall have exclusive jurisdiction over all controversies which shall arise under or in relation to this Guaranty and the Lease. Guarantor irrevocably consents to service, jurisdiction, and venue of such courts for any such litigation and waives any other venue to which it might be entitled by virtue of domicile, habitual residence or otherwise.

IN WITNESS WHEREOF, Guarantor has signed and delivered this Guaranty or has caused this Guaranty to be signed and delivered by its duly authorized representative as of the date set forth above.

GUARANTOR:

(XXX-XX-_____)

Address: _____

Email: _____

Telephone: _____

EXHIBIT A

THE BOULEVARD SHOPPING CENTER
LEASE AGREEMENT